

passive depositary, he can in equity neither take any part of the profits, nor exercise any dominion or control over the *corpus*, except at the instance of the *cestui que trust*.

3. **In special trusts.** — In the *special* trust the authority of the trustee is, as a *general* rule, equally limited except so far as the execution of the trust itself may invest him with a proprietary power, and the duties thus prescribed to him the trustee is bound strictly to pursue without swerving to the right hand or to the left.

4. **Exceptions.** — But, *under particular circumstances*, the trustee is held capable of exercising the discretionary powers of the *bonâ fide* proprietor; for the trust estate itself might otherwise be injuriously affected. The necessity of the moment may demand immediate action, while the sanction of the parties who are beneficially interested could [*573] * not be procured without great inconvenience (as where the *cestuis que trust* are a numerous class), or perhaps could not be obtained at all (as where the *cestuis que trust* are under disability, or not yet in existence). The alternative of consulting the Court would always be attended with considerable expense, and, it may be, an expense wholly disproportioned to the importance of the occasion, and perhaps in the meantime the opportunity might be lost. It is therefore evidently in furtherance of the *cestuis que trust's* own interest, that, where the circumstances of the case require it, the trustee should be at liberty to exercise a reasonable discretionary power (*a*). But a trustee for adults should not take any proceeding without consulting his *cestuis que trust*; and if he do, and the proceeding is disavowed by them, he may have to pay the costs (*b*).

5. **Notice of trustee's intention to cestui que trust.** — Where the trust is not definite and precise, and it is doubtful what ought to be done under the trust, it is said that the trustee may *give notice to the cestui que trust of his intention* to do a particular act, and that unless the *cestui que trust* interferes

(*a*) See *Angell v. Dawson*, 3 Y. & De G. M. & G. 827; *Ward v. Ward*, C. 317; *Darke v. Williamson*, 25 2 H. L. Cas. 784.
Beav. 622; *Harrison v. Randall*, 9 (*b*) *Bradby v. Whitechurch*, W. N. Hare, 407; *Forshaw v. Higginson*, 8 1868, p. 81.